

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 08/26/2026

Case #	Case Name	Tentative
01489177	Eisenbeisz – Trust	TENTATIVE RULING Case: Eisenbeisz – Trust 01489177 Calendar No: 1 Date: 08/26/26 MOTION TO DISMISS OR CHANGE VENUE (ROA 34) Respondent Shannon Gallagher ("Respondent") moves to dismiss or change venue of the Petition filed by Petitioners Sheridan Heidemann, Roxanne Norville, and Shayne Gallagher (collectively, "Petitioners"). Venue in a trust proceeding is determined based on the principal place of administration of the subject trust. (Prob. Code § 17005.) "The principal place of administration of the trust is the usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for the administration of the trust." (Prob. Code § 17002.) While Probate Code sections 17005 and 17002 establish the proper venue for trust proceedings, they do not provide a procedural mechanism for obtaining an order to change venue. Thus, pursuant to Probate Code section 1000, the procedure for changing venue in a trust proceeding is governed by Code of Civil Procedure section 396b. To challenge venue, a responding party must file a noticed motion for an order to transfer the matter to the proper court "at the time he or she answers, demurs, or moves to strike, or . . . within the time otherwise allowed to

		respond." (Code Civ. Proc. § 396b; <i>Estate of Ivey</i> (1994) 22 Cal.App.4th 873, 880.) Here, Respondent did not file a motion to change venue at the time he filed his Objection (ROA 21) on 3/18/26. Nor did Respondent file a motion to change venue within the time allowed to respond to the petition. Pursuant to Probate Code section 1043, a response or objection to a petition can be made before or at the first hearing on the petition. The first hearing on the Petition (ROA 2) in this matter took place on 10/8/25 (ROA 15). Before such hearing, Respondent had filed a motion to dismiss based on lack of notice (ROA 10); he did not move to dismiss or transfer for improper venue. Arguably, Respondent's first appearance was a special appearance, since he only contested the court's jurisdiction and, therefore, he reserved the right to challenge venue. However, Respondent failed to file a motion to change venue by the time of the second hearing on the petition which took place on 3/25/26 (ROA 29). Moreover, after the first motion to dismiss was denied, Respondent filed an Objection to the Petition (ROA 21) on the merits without simultaneously filing a motion to change venue. Respondent raised the issue of venue in his Objection (ROA 21) and orally at the 3/25/26 hearing (ROA 29). However, such actions are irrelevant. Venue must be challenged by timely filing a noticed motion to change venue. (Code Civ. Proc. § 396b(a); <i>Estate of Ivey</i> (1994) 22 Cal.App.4th 873, 880.) In his Reply in support of the instant motion, Respondent argues that <i>Estate of Ivey</i> is distinguishable because, "[u]nlike <i>Estate of Ivey</i> . . . Respondent's objection to venue was asserted in his initial opposition to the petition." (ROA 58, 3:26-27.) However, the court in <i>Estate of Ivey</i> says nothing about whether the responsive pleading raised the issue of venue. It only states that the "motion for change of venue" was untimely filed six months after the filing of the responsive pleading. (<i>Estate of Ivey, supra</i>, at p. 880, emphasis added) "Section 396b of the Code of Civil Procedure represents an explicit codification of the general 'waivability' of venue defects, providing that, notwithstanding the governing venue provisions, an action may generally be tried 'in the court where commenced' unless the defendant makes a timely motion for change of venue; if no such motion is urged, the defendant is considered to have waived any defect." (<i>Barquis v. Merchants Collection Assn.</i> (1972) 7 Cal.3d 94, 115.) Case law recognizes an exception to the general rule of waiver where there is a sufficient showing that the delay in
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		bringing the motion to change venue was justified under the circumstances. In <i>Lyons v. Brunswick-Balke etc. Co.</i> (1942) 20 Cal.2d 579, the plaintiffs filed a lawsuit in Los Angeles County against individual defendants residing in San Francisco County and San Mateo County, as well as a foreign corporation. (<i>Id.</i> at p. 580.) The San Francisco defendant timely filed a motion to transfer venue to San Francisco County, with the consent of the other co-defendants. (<i>Id.</i> at pp. 580-581.) Two days before the hearing on the motion to change venue, the plaintiffs dismissed the San Francisco defendant. Thereafter, the San Mateo defendant promptly moved to change venue to San Mateo County. The trial court granted the motion to change venue over the plaintiffs' objection that it was untimely and, therefore, waived. The California Supreme Court affirmed, finding that the San Mateo defendant had no reason to move to change venue to San Mateo County until the San Francisco defendant had been removed, especially because San Mateo County is adjacent to San Francisco County, and the San Mateo defendant lived near the city of San Francisco. (<i>Id.</i> at pp. 584-585.) <i>Walt Disney Parks & Resorts U.S., Inc. v. Superior Ct.</i> (2018) 21 Cal.App.5th 872 involved a case filed in Los Angeles County. The defendant initially removed the action to federal court. (<i>Id.</i> at p. 874.) The federal court remanded the matter, and the defendant promptly moved to transfer venue to Orange County pursuant to Code of Civil Procedure sections 396b and 397. (<i>Id.</i>) The trial court denied the motion to change venue as untimely. (<i>Id.</i>) The appellate court found that the time limits of Section 396b do not apply to the discretionary provisions of Section 397. (<i>Id.</i> at p. 879.) It further found that "there is nothing in section 396b . . . which compels a holding that such waiver occurs as a matter of law where, as in this case, there is sufficient showing that there was no intent to waive the right or invoke the jurisdiction of the court in which the action commenced, and the defendant has acted in good faith and with diligence." (<i>Id.</i> at 878.) Thus, the trial court remanded the matter and ordered the lower court to vacate the order denying the motion to change venue and hold a new hearing as to whether the defendant had waived venue. (<i>Id.</i> at p. 880.) Here, Respondent's moving papers do not cite to Code of Civil Procedure section 396b or 397. More importantly, there are no facts stated in the moving papers to explain why a motion to change venue was not timely filed. Rather, the moving papers simply state that venue should be transferred because the principal place of administration of the trust is in Los Angeles County. On the record presented, the court is unable to find any justification for
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		Respondent's failure to file a motion to change venue until over 7 months after he was served with the petition. Accordingly, the court finds that Respondent waived venue by failing to timely file a motion to change venue. Further, even if the court were to proceed on the merits, Respondent has offered no facts or evidence to support his contention that the principle place of administration of the trust is in Los Angeles County. Rather, Respondent's declaration in support of the motion makes the conclusory statement that "[t]he principle place of administration of [the Trust] is Los Angeles County" without describing any of the day-to-day activities of the trust. Moreover, Respondent's Reply fails to adequately address why, as trustee, he filed a civil complaint in Orange County against Petitioners and stated in the complaint that he resides in Orange County. "A party waives venue if the party evinces an intent to invoke the jurisdiction of the court in which the action was commenced for the determination of questions of fact or law." (<i>Bloom v. Oroville-Wyandotte Irrigation Dist.</i>, 34 Cal. App. 2d 102, 104; <i>Lyons v. Brunswick-Balke-Collender Co.</i>, 20 Cal. 2d 579, 583.) Here, Petitioners argue that Respondent invoked the jurisdiction of this court by filing an Accounting. In his Reply, Respondent argues that he only filed the Accounting because he was ordered by the court to do so. However, in Respondent's opposition to an ex parte application, Respondent states that "the parties agreed to continue the hearing [on the Petition] until March 25, 2026 [and] the parties also agreed that Respondent would file an accounting with the Court" (ROA 41, 2:13-17.) Such agreements were made by Respondent at the 10/8/25 hearing, at the time his initial motion to dismiss for lack of jurisdiction was denied and before Respondent had raised any venue objection. The agreements to have a hearing on a petition continued and to file an Accounting reflect an intent to invoke the jurisdiction of this court. Further, Respondent invoked the jurisdiction of this court by filing an Objection (ROA 21) to the Petition (ROA2) on the merits without simultaneously filing a noticed motion to change venue. As stated above, merely raising the issue of venue in a responsive pleading is not sufficient. Based on the foregoing, the motion to transfer venue is DENIED.
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01197719	DSP/DNS - Trust	TENTATIVE RULING Case: DSP/DNS - Trust 01197719 Calendar No: 3 Date: 08/26/26 MOTION TO STRIKE COSTS (ROA 406) Respondents Sarah Renner and Cloud 9 Massage Therapy (collectively, "Respondents") bring this motion (ROA 406) to strike the Memorandum of Costs (ROA 396) filed by Petitioner Brad Perrin ("Petitioner") in its entirety. The motion is DENIED. "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." (Cal. Rules of Court, Rule 3.1700(b)(1).) Here, Respondents claim they were only served on 11/20/25 by mail to an incorrect address. In opposition, Petitioner offers proof that Respondents' counsel was electronically served on 11/20/25, which would make the filing of this motion untimely by one day. Regardless of timing, this motion may be denied on the merits. "In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; 'if so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.'" (<i>Foothill-De Anza Community College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29, citation omitted.) "If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the defendant; the burden of showing an item is not properly chargeable or is unreasonable falls on the objector." (<i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 858.) On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Ass'n</i>. (1993) 19 Cal.App.4th 761, 774–776.) Whether a cost item
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		was reasonably necessary to the litigation is a question of fact for the trial court to determine. (<i>Foothill-De-Anza Comm. College Dist. v. Emerich, supra</i>, 158 Cal.App.4th at pp. 29-30.) Here, Respondents did not object to any particular item of cost. Moreover, Petitioner's opposition (ROA 499) supported each item of cost set forth in the Memorandum of Cost. Counsel for Petitioner is to ordered to give notice of this ruling.
01266610	De Leon - Trust	TENTATIVE RULING Case: De Leon - Trust 01266610 Calendar No: 7 Date: 08/26/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 327) Attorney Robert J. Legate seeks to be relieved as counsel for Ruth Chase and Robert Martinez. Counsel has fully complied with California Rules of Court, Rule 3.1362. The clients and another party, Eva Bernal, jointly filed an Objection to the motion to be relieved. (ROA 355.) Ms. Bernal does not have standing to object to this motion, lacks personal knowledge of many of the facts asserted in the Objection, and claims no prejudice that would result to her personally if counsel is relieved. Ms. Chase objects on the grounds that Mr. Legate gave notice of his retirement 4 months ago, not 8 months ago as he states; that Mr. Legate was not willing to proceed to trial without a further pre-trial retainer; that Mr. Legate fabricated his intent to retire; and that Mr. Legate has not been properly serving notice of certain documents to certain people. Ms. Chase states in the Objection that she finds it very difficult to continue to work with Mr. Legate. She also states that she is "NOT" opposed to a ruling that would release Mr.

		Legate since the Heggstad Petition has been continued 1/14/27. Mr. Martinez joins in Ms. Chase's Objection. Based on the foregoing, the court finds good cause to GRANT the motion to be relieved. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel. [Motion Type]
013330971	Belanger – Trust	TENTATIVE RULING Case: Belanger – Trust 013330971 Calendar No: 11 Date: 08/26/26 DEMURRER (ROA 79) Respondent Janice L. Belanger ("Respondent") demurrers to each cause of action in the subsequent trust Petition ("Subsequent Petition") (ROA 65) filed by Petitioner Bruce Kamolnick ("Petitioner"). Petitioner's request for judicial notice (ROA 77) is granted as to Exhibits A and B. <u>First Cause of Action - Accounting</u> <u>Failure to State a Cause of Action</u> Respondent argues that Petitioner lacks standing to request an accounting of Trust A because Trust A remains revocable. However, the Subsequent Petition does not specifically request an accounting of Trust A. The Subsequent Petition alleges that, since Decedent's death in 2012, the trustee has provided no accounting whatsoever. Petitioner is entitled to request information concerning the initial date-of-death inventory of assets and how such assets were allocated between Trust A and Trust B. (Prob. Code §

16060.) Petitioner is also entitled to regular accountings of Trust B. (Prob. Code § 16062.)

Furthermore, “[a] beneficiary who is not entitled to an annual account under Section 16062 may be entitled to information or a particular account under [section 16061].” (*Esslinger v. Cummins* (2006) 144 Cal. App. 4th 517, 526, citing Cal. Law Revision Com. com., 54A West’s Ann. Prob.Code, (1991 ed.) foll. § 16061, p. 52.) “The trustee may be compelled to account not only by a beneficiary presently entitled to the payment of income or principal, but also by a beneficiary who will be or may be entitled to receive income or principal in the future.” (Rest.2d Trusts, § 172, com. c, p. 377.)” (*Esslinger v. Cummins*, supra, 144 Cal.App.4th at p. 525.)

Moreover, the court has inherent discretion to order an accounting sua sponte to determine the status of trust assets where there is “substantial reasons for the trial court to be concerned about trust expenditures.” (*Christie v. Kimball* (2012) 202 Cal. App. 4th 1407, 1413.) Such right is consistent with the court’s duty to supervise trust administration and the court’s inherent equitable power to take remedial actions to prevent or rectify abuses of a trustee’s power. (*Id.*)

Thus, the Subsequent Petition states facts sufficient to constitute a cause of action for an accounting.

Another Action Pending

Respondent further demurs to the first cause of action on the ground that the first Petition ("Initial Petition") (ROA 2) filed by Petitioner seeks the same relief.

The Initial Petition asks the court to confirm that the Estate of John Alan Belanger is a vested beneficiary of Trust B; to instruct the trustee to place the "Diamante Property" into Trust B; and to confirm that Petitioner or another qualified fiduciary shall fill the vacancy of trustee for Trust B.

No part of the Initial Petition requests an accounting of any kind.

Moreover, the court is not persuaded that the Initial Petition needs to be resolved before the trustee can provide an accounting or before the court can order an accounting. The Initial Petition requests instruction as to the allocation of only one item of real property. That does not excuse the trustee's duty to comply with Probate Code sections 16060 and 16061 entirely.

Defect or Misjoinder of Parties

Respondent demurs to the first cause of action on the grounds that there is a defect or misjoinder of parties.

Respondent offers no facts, law, or argument in support of such grounds for demurrer. Therefore, the court is not required to consider it. (*Cahill v. San Diego Gas & Electric Co.* (2011) 194 Cal.App.4th 939, 956; *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934; *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; *People v. Stanley* (1995) 10 Cal.4th 764, 793.)

Uncertainty

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*People v. Lim* (1941) 18 Cal.2d 872, 883.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.)

Here, the Subsequent Petition is not so ambiguous that Respondent cannot reasonably determine how to respond. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, any ambiguities in the Subsequent Petition can be clarified through discovery.

Based on the foregoing, the Demurrer to the first cause of action in the Petition is **OVERRULED**.

Second Cause of Action - Breach of Fiduciary Duty

Respondent demurs to the second cause of action for breach of fiduciary duty on the same grounds that he demurs to the first cause of action (i.e., fails to state facts sufficient; another action pending; defect or misjoinder of parties; and uncertainty).

However, the demurrer offers no facts, law, or argument in support of any such grounds for demurrer as to the second cause of action. Therefore, the court is not required to consider it. (*Cahill v. San Diego Gas & Electric Co.* (2011) 194 Cal.App.4th 939, 956; *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934; *In re*

Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 830; *People v. Stanley* (1995) 10 Cal.4th 764, 793.)

Based on the foregoing, the Demurrer to the second cause of action in the Petition is **OVERRULED**.

Third, Fourth, and Fifth Causes of Action - Remove/Suspend Trustee and Appoint New Trustee

Respondent argues that demurrer to these causes of action should be sustained for the same reasons that demurrer to the second cause of action should be sustained. As noted above, however, the moving papers do not offer any reason to sustain demurrer to the second cause of action.

Respondent also states, "Petitioner contends Respondent should be removed as trustee based on conduct as alleged in the Petition for Instructions that has not been decided yet." Though Respondent states nothing more, the court presumes Respondent intended such statement to indicate that demurrer should be sustained pursuant to Code of Civil Procedure section 430.10(c) which permits demurrer when there is "another action pending between the same parties on the same cause of action."

However, the Initial Petition does not consist of any "causes of action." Rather, it requests instructions pursuant to Probate Code section 17200. Specifically, the Initial Petition requests that the court ascertain beneficiaries, instruct the trustee how to allocate a certain real property asset, and resolve the vacancy for the trustee of Trust B. In short, it requests orders regarding the internal affairs of the trust that are administrative in nature.

A cause action seeks to impose liability for misconduct (e.g., breach of fiduciary duty, financial elder abuse, fraud, etc.). Unlike the Initial Petition, the Subsequent Petition asserts causes of action against the Trustee for breach of fiduciary duties and seeks removal of the trustee based on such breaches.

Based on the foregoing, the Demurrer to the Third, Fourth, and Fifth causes of action in the Petition is **OVERRULED**.

Sixth Cause of Action - Common Fund Doctrine

The court agrees with Petitioner that a request for fees under the common fund doctrine or substantial benefit doctrine is an equitable remedy and not a cause of action. Petitioner is not entitled to such fees unless and until a judgment is rendered in Petitioner's favor that benefits the

		remaining beneficiaries. Nonetheless, many practitioners choose to plead the entitlement to such fees early to signal the intent to seek such fees in order to avoid claims of waiver or prejudice for not raising it sooner. Moreover, since the prayer for relief in the Petition seeks attorneys fees, it behooves Petitioner to plead facts supporting such prayer for relief to avoid a motion to strike the requested relief. The trial court has discretion to make the determination of whether such equitable fees should be awarded in the judgment or to leave the issue to a post-judgment motion for fees. While the probate courts apply the code of civil procedure (Prob. Code § 1000), civil procedures do not always perfectly comport with probate procedures. The formatting in the caption and body of this Petition (ROA 65) seemingly indicate that equitable fees are being asserted as a "cause of action." However, the court looks to substance over form. There is nothing in the substance of the Subsequent Petition that indicates the request for fees pursuant to the common fund doctrine is anything other than an equitable remedy. Based on the foregoing, the Demurrer to the sixth "cause of action" in the Petition is OVERRULED. Counsel for moving party is requested to give notice of this ruling.
01152663	Lashley – Trust	TENTATIVE RULING Case: Lashley – Trust 01152663 Calendar No: 12 Date: 08/12/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 31) Attorney Stephen P. Shepard seeks to be relieved as counsel for Co-Trustee Linda Hughes. An attorney’s right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21.

		Counsel has fully complied with California Rules of Court, Rule 3.1362 by filing and serving all three mandatory forms (i.e., MC-051, MC-052, and MC-053). However, Counsel has not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties." The client is a co-trustee of the subject trust, and the court's records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.) If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: